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that foreign organizations operating abroad do not possess rights under the U. S. Constitution and enmesh the courts in difficult line-drawing exercises. Second, plaintiffs assert that the Court's 2013 decision encompassed both American organizations and their foreign affiliates. That decision did not facially invalidate the Act's funding condition, suggest that the First Amendment requires the Government to exempt plaintiffs' foreign affiliates or other foreign organizations from the Policy Requirement, or purport to override longstanding constitutional law and corporate law principles. Pp. 433–440.

911 F. 3d 104, reversed.

KAVANAUGH, J., delivered the opinion of the Court, in which ROBERTS, C. J., and THOMAS, ALITO, and GORSUCH, JJ., joined. THOMAS, J., filed a concurring opinion, *post*, p. 440. BREYER, J., filed a dissenting opinion, in which GINSBURG and SOTOMAYOR, JJ., joined, *post*, p. 441. KAGAN, J., took no part in the consideration or decision of the case.

Christopher G. Michel argued the cause for petitioners. With him on the briefs were *Solicitor General Francisco, Assistant Attorney General Hunt, Deputy Solicitor General Kneedler, Benjamin H. Torrance, and Sharon Swingle*.

David W. Bowker argued the cause for respondents. With him on the brief were *Catherine M. A. Carroll, David A. Stoopler, Kevin M. Lamb, Alex Hemmer, and Emily J. Barnet*.*

JUSTICE KAVANAUGH delivered the opinion of the Court.

In 2003, Congress passed and President George W. Bush signed the United States Leadership Against HIV/AIDS,

**Jay Alan Sekulow, Stuart J. Roth, Colby M. May, and Walter M. Weber* filed a brief for the American Center for Law and Justice as *amicus curiae* urging reversal.

Briefs of *amici curiae* urging affirmance were filed for Adventist Development and Relief Agency International by *Eugene Volokh, Andrew L. Frey, and Cleland B. Welton II*; for the Cato Institute by *Megan L. Brown, Scott B. Wilkens, and Ilya Shapiro*; for Current and Former Members of Congress by *Carter G. Phillips and Tobias S. Loss-Eaton*; for Professors of Public Health et al. by *Jessica Ring Amunson*; and for the Washington Legal Foundation by *Douglas W. Dunham, Cory L. Andrews, and Corbin K. Barthold*.

Tuberculosis, and Malaria Act, known as the Leadership Act. 117 Stat. 711, as amended, 22 U. S. C. § 7601 *et seq.* Aiming to enhance America’s response to the ravages of the global HIV/AIDS crisis, the Leadership Act launched “the largest international public health program of its kind ever created.” § 7601(29). The Act has helped save an estimated 17 million lives, primarily in Africa, and is widely viewed as the most successful American foreign aid program since the Marshall Plan.

To advance the global relief effort, Congress has allocated billions of dollars to American and foreign nongovernmental organizations that combat HIV/AIDS abroad. As relevant here, Congress sought to fund only those organizations that have, or agree to have, a “policy explicitly opposing prostitution and sex trafficking.” § 7631(f); see also § 7631(e); 45 CFR § 89.1 (2019). Congress imposed that condition on funding, known as the Policy Requirement, because Congress found that prostitution and sex trafficking “are additional causes of and factors in the spread of the HIV/AIDS epidemic” and that prostitution and sex trafficking “are degrading to women and children.” § 7601(23).

Plaintiffs are American nongovernmental organizations that receive Leadership Act funds to fight HIV/AIDS abroad. Plaintiffs have long maintained that they do not want to express their agreement with the American commitment to eradicating prostitution. Plaintiffs consider a public stance of neutrality toward prostitution more helpful to their sensitive work in some parts of the world and also to their full participation in the global efforts to prevent HIV/AIDS.

After enactment of the Leadership Act, plaintiffs challenged the Policy Requirement, alleging that it violated the First Amendment. In 2013, this Court agreed, concluding that the Policy Requirement ran afoul of the free speech principle that the Government “may not deny a benefit to a person on a basis that infringes his constitutionally pro-

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tected . . . freedom of speech.” *Agency for Int’l Development v. Alliance for Open Society Int’l, Inc.*, 570 U. S. 205, 214 (2013) (internal quotation marks omitted). Therefore, the Policy Requirement no longer applies to *American* organizations that receive Leadership Act funds, meaning that American organizations can obtain Leadership Act funds even if they do not have a policy explicitly opposing prostitution and sex trafficking.

But as has been the case since 2003, *foreign* organizations that receive Leadership Act funds remain subject to the Policy Requirement and still must have a policy explicitly opposing prostitution and sex trafficking. Following this Court’s 2013 decision barring the Government from enforcing the Policy Requirement against American organizations, plaintiffs returned to court, invoking the First Amendment and seeking to bar the Government from enforcing the Policy Requirement against plaintiffs’ legally distinct foreign affiliates. The U. S. District Court for the Southern District of New York agreed with plaintiffs and prohibited the Government from enforcing the Policy Requirement against plaintiffs’ foreign affiliates. The U. S. Court of Appeals for the Second Circuit affirmed. Judge Straub dissented. He described as “startling” the proposition that the First Amendment could extend to foreign organizations operating abroad. 911 F. 3d 104, 112 (2018). The Second Circuit’s decision was stayed pending this Court’s review, meaning that foreign organizations currently remain subject to the Policy Requirement.

We granted certiorari, 589 U. S. 1119 (2019), and now reverse the judgment of the Second Circuit. Plaintiffs’ position runs headlong into two bedrock principles of American law.

First, it is long settled as a matter of American constitutional law that foreign citizens outside U. S. territory do not possess rights under the U. S. Constitution. Plaintiffs do

not dispute that fundamental principle. Tr. of Oral Arg. 58–59; see, *e. g.*, *Boumediene v. Bush*, 553 U. S. 723, 770–771 (2008); *Hamdi v. Rumsfeld*, 542 U. S. 507, 558–559 (2004) (Scalia, J., dissenting); *United States v. Verdugo-Urquidez*, 494 U. S. 259, 265–275 (1990); *Johnson v. Eisentrager*, 339 U. S. 763, 784 (1950); *United States ex rel. Turner v. Williams*, 194 U. S. 279, 292 (1904); U. S. Const., Preamble.

As the Court has recognized, foreign citizens *in the United States* may enjoy certain constitutional rights—to take just one example, the right to due process in a criminal trial. See, *e. g.*, *Verdugo-Urquidez*, 494 U. S., at 270–271; *Plyler v. Doe*, 457 U. S. 202, 210–213 (1982); *Kwong Hai Chew v. Colding*, 344 U. S. 590, 596 (1953); *Bridges v. Wixon*, 326 U. S. 135, 148 (1945); *Yick Wo v. Hopkins*, 118 U. S. 356, 369 (1886); cf. *Bluman v. Federal Election Comm’n*, 800 F. Supp. 2d 281, 286–289 (DC 2011), *aff’d*, 565 U. S. 1104 (2012). And so too, the Court has ruled that, under some circumstances, foreign citizens in the U. S. Territories—or in “a territory” under the “indefinite” and “complete and total control” and “within the constant jurisdiction” of the United States—may possess certain constitutional rights. *Boumediene*, 553 U. S., at 755–771. But the Court has not allowed foreign citizens outside the United States or such U. S. territory to assert rights under the U. S. Constitution. If the rule were otherwise, actions by American military, intelligence, and law enforcement personnel against foreign organizations or foreign citizens in foreign countries would be constrained by the foreign citizens’ purported rights under the U. S. Constitution. That has never been the law. See *Verdugo-Urquidez*, 494 U. S., at 273–274; *Eisentrager*, 339 U. S., at 784.* To be

*As Justice Jackson stated for the Court in *Eisentrager*:

“If the Fifth Amendment confers its rights on all the world . . . , the same must be true of the companion civil-rights Amendments, for none of them is limited by its express terms, territorially or as to persons. Such a construction would mean that during military occupation irreconcilable enemy elements, guerrilla fighters, and ‘werewolves’ could require the

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sure, Congress may seek to enact laws that afford foreign citizens abroad statutory rights or causes of action against misconduct by U. S. Government officials, or laws that otherwise regulate the conduct of U. S. officials abroad. See *Verdugo-Urquidez*, 494 U. S., at 275; cf. 10 U. S. C. §§ 2734(a), 2734a(a); 18 U. S. C. § 2340A; 21 U. S. C. § 904; 22 U. S. C. §§ 2669, 2669–1; 42 U. S. C. § 2000dd; but see 28 U. S. C. § 2680(k) (Federal Tort Claims Act’s exception for torts “arising in a foreign country”). Plaintiffs did not raise any such statutory claim in this case.

Second, it is long settled as a matter of American corporate law that separately incorporated organizations are separate legal units with distinct legal rights and obligations. See *Dole Food Co. v. Patrickson*, 538 U. S. 468, 474–475 (2003); *Cedric Kushner Promotions, Ltd. v. King*, 533 U. S. 158, 163 (2001); P. Blumberg, K. Strasser, N. Georgakopoulos, & E. Gouvin, *Corporate Groups* §§ 6.01, 6.02, 6.05 (2020 Supp.).

Plaintiffs’ foreign affiliates were incorporated in other countries and are legally separate from plaintiffs’ American organizations. Even though the foreign organizations have affiliated with the American organizations, the foreign organizations remain legally distinct from the American organizations. Plaintiffs do not ask this Court to pierce the corporate veil, nor do they invoke any other relevant exception to

American Judiciary to assure them freedoms of speech, press, and assembly as in the First Amendment, right to bear arms as in the Second, security against ‘unreasonable’ searches and seizures as in the Fourth, as well as rights to jury trial as in the Fifth and Sixth Amendments.

“Such extraterritorial application of organic law would have been so significant an innovation in the practice of governments that, if intended or apprehended, it could scarcely have failed to excite contemporary comment. Not one word can be cited. No decision of this Court supports such a view. Cf. *Downes v. Bidwell*, 182 U. S. 244. None of the learned commentators on our Constitution has even hinted at it.” 339 U. S., at 784–785.

that fundamental corporate law principle. Tr. of Oral Arg. 54.

Those two bedrock principles of American constitutional law and American corporate law together lead to a simple conclusion: As foreign organizations operating abroad, plaintiffs' foreign affiliates possess no rights under the First Amendment.

That conclusion corresponds to historical practice regarding American foreign aid. The United States supplies more foreign aid than any other nation in the world. Cong. Research Serv., *Foreign Assistance: An Introduction to U. S. Programs and Policy* (2020) (Summary). Acting with the President in the legislative process, Congress sometimes imposes conditions on foreign aid. See 22 U.S.C. §§ 2271, 2272, 2371, 7110(g)(2). Congress may condition funding on a foreign organization's ideological commitments—for example, pro-democracy, pro-women's rights, anti-terrorism, pro-religious freedom, anti-sex trafficking, or the like. Doing so helps ensure that U. S. foreign aid serves U. S. interests. By contrast, plaintiffs' approach would throw a constitutional wrench into American foreign policy. In particular, plaintiffs' approach would put Congress in the untenable position of either cutting off certain funding programs altogether, or instead funding foreign organizations that may not align with U. S. values. We see no constitutional justification for the Federal Judiciary to interfere in that fashion with American foreign policy and American aid to foreign organizations.

In short, plaintiffs' foreign affiliates are foreign organizations, and foreign organizations operating abroad have no First Amendment rights.

To overcome that conclusion, plaintiffs advance two main arguments. But neither persuades us.

First, plaintiffs theorize that the foreign affiliates' required statement of policy against prostitution and sex traf-

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ficking may be incorrectly attributed to the American organizations. Therefore, the theory goes, the American organizations themselves possess a First Amendment right against imposition of the Policy Requirement on their foreign affiliates.

As support, plaintiffs point to First Amendment cases involving speech misattribution between formally distinct speakers. See, e.g., *Hurley v. Irish-American Gay, Lesbian and Bisexual Group of Boston, Inc.*, 515 U. S. 557, 574–575 (1995); *Pacific Gas & Elec. Co. v. Public Util. Comm’n of Cal.*, 475 U. S. 1, 15 (1986) (plurality opinion); cf. *PruneYard Shopping Center v. Robins*, 447 U. S. 74, 87 (1980). But the constitutional issue in those cases arose because the State forced one speaker to host another speaker’s speech. See *Hurley*, 515 U. S., at 572–573; *Pacific Gas*, 475 U. S., at 15; cf. *PruneYard*, 447 U. S., at 85, 87. Here, by contrast, the United States is not forcing plaintiffs to affiliate with foreign organizations. Plaintiffs are free to choose whether to affiliate with foreign organizations and are free to disclaim agreement with the foreign affiliates’ required statement of policy. Any alleged misattribution in this case and any effect on the American organizations’ message of neutrality toward prostitution stems from their choice to affiliate with foreign organizations, not from U. S. Government compulsion. Because the First Amendment misattribution cases are premised on government compulsion to associate with another entity, those cases do not apply here.

In support of their misattribution argument, plaintiffs also cite *Regan v. Taxation With Representation of Wash.*, 461 U. S. 540, 544–545, and n. 6 (1983). But as relevant here, that case simply explained that a speech restriction on a corporate entity did not prevent a separate affiliate from speaking, a point that is not disputed in this case.

We appreciate that plaintiffs would prefer to affiliate with foreign organizations that do not oppose prostitution. But

Congress required foreign organizations to oppose prostitution in return for American funding. And plaintiffs cannot export their own First Amendment rights to shield foreign organizations from Congress's funding conditions.

Stressing that their position is limited, plaintiffs emphasize that the Court could narrowly decide to protect the free speech rights of only those foreign organizations that are *closely identified* with American organizations—for example, those foreign affiliates that share similar names, logos, and brands with American organizations. According to plaintiffs, those “closely identified” scenarios greatly increase the risk of misattribution. But again, the First Amendment cases involving speech misattribution arose when the State forced one speaker to host another speaker's speech. No compulsion is present here. Moreover, plaintiffs' proposed line-drawing among foreign organizations would blur a clear rule of American law: Foreign organizations operating abroad do not possess rights under the U. S. Constitution. Plaintiffs' carve-out not only would deviate from that fundamental principle, but also would enmesh the courts in difficult line-drawing exercises—how closely identified is close enough?—and leave courts without any principled basis for making those judgments. We discern no good reason to invent a new and legally unmoored exception to longstanding principles of American constitutional and corporate law.

Second, plaintiffs argue that the Court's 2013 decision in this case encompassed both plaintiffs' American organizations and their foreign affiliates, meaning that, in plaintiffs' view, the Court has already resolved the issue before us. That is not correct. The plaintiffs in the 2013 case were these same American organizations. It is true that the Court considered the possibility that an American organization could work through affiliates to potentially avoid the burdens of the otherwise-unconstitutional application of the

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Policy Requirement. But the Court rejected that alternative, which in essence would have compelled the American organizations to affiliate with other organizations. The Court instead ruled that the Policy Requirement may not be applied to plaintiffs' American organizations. Therefore, plaintiffs' current affiliations with foreign organizations are their own choice, not the result of any U. S. Government compulsion.

Stated simply, in the prior decision, the Court did not facially invalidate the Act's condition on funding. The Court did not hold or suggest that the First Amendment requires the Government to exempt plaintiffs' foreign affiliates or other foreign organizations from the Policy Requirement. And the Court did not purport to override the longstanding constitutional law principle that foreign organizations operating abroad do not possess constitutional rights, or the elementary corporate law principle that each corporation is a separate legal unit.

The dissent emphasizes that this case concerns "the First Amendment rights of American organizations." *Post*, at 441 (opinion of BREYER, J.). We respectfully disagree with that characterization of the question presented. The Court's prior decision recognized the First Amendment rights of American organizations and held that American organizations do not have to comply with the Policy Requirement. This case instead concerns foreign organizations that are voluntarily affiliated with American organizations. Those foreign organizations are legally separate from the American organizations. And because foreign organizations operating abroad do not possess constitutional rights, those foreign organizations do not have a First Amendment right to disregard the Policy Requirement.

In sum, plaintiffs' foreign affiliates are foreign organizations, and foreign organizations operating abroad possess no rights under the U. S. Constitution. We reverse the

THOMAS, J., concurring

judgment of the U. S. Court of Appeals for the Second Circuit.

It is so ordered.

JUSTICE KAGAN took no part in the consideration or decision of this case.

JUSTICE THOMAS, concurring.

I agree with the Court that the Policy Requirement does not violate the First Amendment as applied to respondents' foreign affiliates, and I agree that nothing about this Court's decision in *Agency for Int'l Development v. Alliance for Open Society Int'l, Inc.*, 570 U. S. 205 (2013) (*AOSI I*), suggests otherwise. See *ante*, at 439. I write separately to note my continued disagreement with *AOSI I* and to explain that the Policy Requirement does not violate the First Amendment for a far simpler reason: It does not compel anyone to say anything.

In *AOSI I*, the Court erred by holding that the Policy Requirement violated respondents' First Amendment rights by conditioning their receipt of Leadership Act* funds on the affirmation of certain program objectives. "The First Amendment does not mandate a viewpoint-neutral government." *AOSI I*, 570 U. S., at 221 (Scalia, J., joined by THOMAS, J., dissenting). Thus, the Government may require those who seek to carry out federally funded programs to support the Government's objectives with regard to those programs. *Ibid.* After all, the Constitution itself "impos[es] affirmative ideological commitments prerequisite to assisting in the government's work." *Id.*, at 227. It excludes viewpoints such as communism and anarchism, stating that those engaged in government work must swear an oath

*As the Court explains, the United States Leadership Against HIV/AIDS, Tuberculosis, and Malaria Act of 2003 (Leadership Act), 22 U. S. C. § 7601 *et seq.*, "allocate[s] billions of dollars to American and foreign non-governmental organizations that combat HIV/AIDS abroad." *Ante*, at 432.

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to support our Constitution’s republican form of government. See Art. VI, cl. 3.

Moreover, the mere conditioning of funds on “the affirmation of a belief” tied to the purpose of a government program involves “no compulsion at all.” *AOSI I*, 570 U. S., at 226 (Scalia, J., joined by THOMAS, J., dissenting). Such a condition is “the reasonable price of admission to a limited government-spending program that each organization remains free to accept or reject.” *Ibid.* Just as respondents are not compelled to associate with their foreign affiliates, see *ante*, at 436–438, they are not compelled to participate in the Leadership Act program.

The Policy Requirement does not violate the First Amendment, regardless of whether it is applied to respondents, respondents’ legally distinct foreign affiliates, or any other organization, foreign or domestic. Because the Court properly rejects respondents’ attempt to extend our erroneous precedent, I join its opinion in full.

JUSTICE BREYER, with whom JUSTICE GINSBURG and JUSTICE SOTOMAYOR join, dissenting.

The Court, in my view, asks the wrong question and gives the wrong answer. This case is not about the First Amendment rights of foreign organizations. It is about—and has always been about—the First Amendment rights of American organizations.

The last time this case came before us, those American organizations vindicated their constitutional right to speak freely, both at home and abroad. In *Agency for Int’l Development v. Alliance for Open Society Int’l, Inc.*, 570 U. S. 205 (2013) (*AOSI I*), we held that the First Amendment forbids the Government from distorting their speech by requiring, as a condition of receiving federal funds, that they “pledge allegiance” to a state-sponsored message. *Id.*, at 220.

This time, the question is whether the American organizations enjoy that same constitutional protection against

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government-compelled distortion when they speak through clearly identified affiliates that have been incorporated overseas. The answer to that question, as I see it, is yes. I dissent from the Court's contrary conclusion.

I

To understand the issue now before us, one must appreciate how it got here. Given this litigation's lengthy history, that requires a rather detailed look at why this dispute first arose, what we decided in our prior decision (namely, *AOSI I*), and where the case proceeded from there.

A

As we explained in *AOSI I*, the plaintiffs in this action (respondents in this Court then and now) “are a group of domestic organizations engaged in combating HIV/AIDS overseas.” *Id.*, at 210. Their lifesaving work spans multiple continents. *Id.*, at 211. For example, respondents run “programs aimed at limiting injection drug use in Uzbekistan, Tajikistan, and Kyrgyzstan, preventing mother-to-child HIV transmission in Kenya, and promoting safer sex practices in India.” *Ibid.* Respondents also counsel high-risk populations such as sex workers, encourage foreign governments to adopt beneficial public policies, and share information about best practices in publications and at conferences. See *ibid.*; App. 171, 217, 222, 419. To support these international efforts, respondents must make fundraising appeals to donors worldwide. See, e.g., *id.*, at 366, 384, 431–433, 457. But crucially for both their mission and for this case, respondents also “receive billions [of dollars] annually in financial assistance from the United States.” *AOSI I*, 570 U. S., at 210.

One of respondents' primary sources of federal funding is the United States Leadership Against HIV/AIDS, Tuberculosis, and Malaria Act of 2003. 117 Stat. 711, as amended, 22 U. S. C. § 7601 *et seq.* (Leadership Act). Congress en-

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acted the Leadership Act with the goal of creating “a ‘comprehensive, integrated’ strategy to combat HIV/AIDS around the world.” *AOSI I*, 570 U.S., at 209 (quoting §7611(a)). To that end, the statute allocates considerable federal dollars to nongovernmental organizations fighting HIV/AIDS abroad. *Id.*, at 209–211.

But Leadership Act funding comes with strings attached. Two, in particular. First, no Leadership Act funds “‘may be used to promote or advocate the legalization or practice of prostitution or sex trafficking.’” *Id.*, at 210 (quoting §7631(e)). Second, with some exceptions not relevant here, any recipient of Leadership Act funds must have “‘a policy explicitly opposing prostitution and sex trafficking.’” *Id.*, at 210 (quoting §7631(f)). The first condition limiting how Leadership Act funds may be spent has never been challenged in this litigation. *Id.*, at 210. What has driven this decades-long dispute is the second condition, the “Policy Requirement” that requires recipients to espouse a government message. *Ibid.*

Concerned that “adopting a policy explicitly opposing prostitution” could “alienate certain host governments” and “mak[e] it more difficult to work with prostitutes in the fight against HIV/AIDS,” respondents sued. *Id.*, at 211. They asserted that the Policy Requirement put an unconstitutional condition on the receipt of federal funds and was thus unenforceable. *Id.*, at 212. Accordingly, as the case came to us in *AOSI I*, the question was whether this funding condition violated respondents’ First Amendment rights. *Id.*, at 211.

B

The answer, we held in *AOSI I*, was yes. Our reasoning then demands close inspection now.

To begin, we observed in *AOSI I* that “the Policy Requirement would plainly violate the First Amendment” if it operated “as a direct regulation of speech.” *Id.*, at 213. Commanding someone to speak a government message

contravenes the “basic First Amendment principle that ‘freedom of speech prohibits the government from telling people what they must say.’” *Ibid.* (quoting *Rumsfeld v. Forum for Academic and Institutional Rights, Inc.*, 547 U. S. 47, 61 (2006) (*FAIR*)); see also, *e. g.*, *West Virginia Bd. of Ed. v. Barnette*, 319 U. S. 624, 642 (1943); *Wooley v. Maynard*, 430 U. S. 705, 717 (1977).

That the Policy Requirement is a funding condition, rather than a direct command, complicated the analysis in *AOSI I* but did not change the outcome. True, Congress’ Article I spending power “includes the authority to impose limits on the use of [federal] funds to ensure they are used” as “Congress intends,” even conditions that “may affect the recipient’s exercise of its First Amendment rights.” *AOSI I*, 570 U. S., at 213–214. That is all the first (and unchallenged) Leadership Act condition does by forbidding federal funds from being used to promote prostitution or sex trafficking. See *id.*, at 217–218. Congress may not, however, “leverage funding to regulate speech outside the contours” of the program it has chosen to subsidize. *Id.*, at 214–215. *That*, as we will see, is what the Policy Requirement does—and why we held in *AOSI I* that this second condition violated respondents’ First Amendment rights.

The constitutional line is whether a funding condition helps “specify the activities Congress wants to subsidize” or instead seeks to “reach [speech] outside” the federal program. *Id.*, at 214, 217. We recognized in *AOSI I* that this line “is not always self-evident.” *Id.*, at 217. To “hel[p] illustrate the distinction,” our decision gave two examples from our precedents. *Id.*, at 215.

As an example of what the Government may *not* do, we pointed to our decision *FCC v. League of Women Voters of Cal.*, 468 U. S. 364 (1984). There, the Government required noncommercial broadcasters receiving federal financial assistance to refrain from editorializing entirely; they could not even “establish [an] ‘affiliate’ organizatio[n]” to editorialize

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on their behalf “with nonfederal funds.” *Id.*, at 400. By giving a broadcaster no way “to make known its views on matters of public importance,” the funding condition in *League of Women Voters* violated the First Amendment. *Id.*, at 400–401. That condition, as we put it in *AOSI I*, “went beyond” ensuring that federal funds did not subsidize the broadcasters’ editorial content and therefore distorted their “speech outside the scope of the program.” 570 U. S., at 216.

Just the opposite was true in *Regan v. Taxation With Representation of Wash.*, 461 U. S. 540 (1983), the case we cited in *AOSI I* as an example of what the Government *may* do. In *Regan*, a nonprofit group received tax-exempt status as a § 501(c)(3) organization on the condition that the organization not engage in lobbying. *AOSI I*, 570 U. S., at 215 (citing *Regan*, 461 U. S., at 544). Even though this condition on federal financial assistance affected the nonprofit’s exercise of First Amendment rights, the condition was constitutional because it “did not prohibit [the nonprofit] from lobbying Congress altogether.” 570 U. S., at 215.

Specifically, the nonprofit in *Regan*—unlike the broadcasters in *League of Women Voters*—was permitted to establish an affiliate to carry on its lobbying activities as a § 501(c)(4) organization. *AOSI I*, 570 U. S., at 215 (citing *Regan*, 461 U. S., at 544). The nonprofit could thus act (and speak) through two corporate entities: The § 501(c)(3) organization could get the tax exemption (but not lobby), while the § 501(c)(4) organization could lobby (but not get the tax exemption). 570 U. S., at 215. Since requiring the nonprofit to adopt this “‘dual structure’” was not “‘unduly burdensome,’” the condition in *Regan* “did not deny the [nonprofit] a government benefit ‘on account of its intention to lobby.’” 570 U. S., at 215 (quoting *Regan*, 461 U. S., at 545, and n. 6). The condition was thus constitutional, even though it essentially compelled the nonprofit to affiliate with other organizations. See 570 U. S., at 215.

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In *AOSI I*, we held “that the Policy Requirement falls on the unconstitutional side of the line” separating *League of Women Voters* (unconstitutional) and *Regan* (constitutional). 570 U. S., at 217. Like the funding condition in *League of Women Voters*, we explained, the Policy Requirement affects protected speech outside the scope of the federal program. 570 U. S., at 218. “By requiring recipients to profess a specific belief,” it “goes beyond defining” the program “to defining the recipient” in the eyes of their global audience. *Ibid.* Respondents cannot “avow [a] belief dictated by” the Government “when spending Leadership Act funds, and then turn around and assert a contrary belief, or claim neutrality,” when acting on their “own time and dime.” *Ibid.* The Policy Requirement thus conditioned funding on an across-the-board distortion of respondents’ message. See *ibid.*

We further explained in *AOSI I*—and this is critical—why we could not accept the Government’s suggestion that the case was just a redux of *Regan*. In *AOSI I*, the Government suggested a similar “dual-structure” solution to the First Amendment problem. Like the nonprofit in *Regan*, the Government noted, respondents could act (and speak) through two corporate entities: One organization could receive Leadership Act funds on respondents’ behalf (and comply with the Policy Requirement), while a legally separate affiliate could communicate respondents’ preferred message (and not receive Leadership Act funds)—or vice versa. *AOSI I*, 570 U. S., at 219. True enough. But we *rejected* the Government’s argument all the same.

Why did we reject it? Because corporate formalities do nothing to ward off speech distortion where—like *AOSI I*, but unlike *Regan*—the Government has required a speaker to “espouse a specific belief as its own.” 570 U. S., at 219. “If the affiliate is distinct from the recipient,” we reasoned, “the arrangement does not afford a means for the *recipient* to express *its* beliefs.” *Ibid.* And if “the affiliate is more clearly identified with the recipient, the recipient can express

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those beliefs only at the price of evident hypocrisy.” *Ibid.* With respect to the latter situation, in other words, compelling a recipient to disavow a message involuntarily uttered by its clearly identified affiliate is forced hypocrisy, not free speech. See *ibid.*

In sum, the Policy Requirement conditioned federal funds on an unavoidable and irreversible distortion of respondents’ protected speech. We therefore held in *AOSI I* that the Policy Requirement “violates the First Amendment and cannot be sustained.” *Id.*, at 221.

C

On remand from our decision, the District Court did what district courts ought to do. It “tailor[ed] ‘the scope of the remedy’ to fit ‘the nature and extent of the constitutional violation’” that we identified in *AOSI I*. *Hills v. Gautreaux*, 425 U.S. 284, 294 (1976) (quoting *Milliken v. Bradley*, 418 U.S. 717, 744 (1974)).

The District Court, like our Court, recognized that respondents’ work—and with it their protected speech—has a global reach. But respondents, it turns out, use different organizational structures to deliver services in different places. 106 F. Supp. 3d 355, 360–361 (SDNY 2015). Sometimes, particularly when foreign governments (or our own government) require, respondents operate through legally separate affiliates incorporated abroad. *Ibid.*; see also, *e.g.*, App. 368, 373–375.

In the District Court’s view, those corporate formalities did not meaningfully change the First Amendment calculus. See 106 F. Supp. 3d, at 360–361. Respondents, together with their affiliates, convey a clear, consistent message to high-risk populations, government officials, healthcare professionals, prospective employees, and private donors across the globe. See, *e.g.*, App. 370–371, 391, 460–461. They share the same name, logo, and branding—all of which use identical colors, fonts, and imagery. See, *e.g., id.*, at 445–455. They adhere to shared values, work towards common goals, and

coordinate their collective message. See, *e. g.*, *id.*, at 385–386, 404–429. To an outside observer, respondents and their affiliates are a single, cohesive unit. They speak as one.

The District Court consequently concluded that imposing the Policy Requirement on respondents’ affiliates—wherever they happen to have been incorporated—would force respondents to “expres[s] contrary positions on the same matter through [their] different organizational components.” 106 F. Supp. 3d, at 361. To prevent that from happening, and in keeping with the principles we set forth in *AOSI I*, the District Court enjoined enforcement of the Policy Requirement against respondents and their clearly identified affiliates, including affiliates that were incorporated overseas. *Id.*, at 363. The District Court thought that remedial order necessary to protect respondents’ *own* First Amendment rights—rights that, as American organizations, respondents unquestionably have. *Id.*, at 361.

The Court of Appeals understood the District Court’s order that way, too. “The narrow issue before” us, the Court of Appeals explained, “is whether applying the Policy Requirement to [respondents’] closely aligned foreign affiliates violates [respondents’] own First Amendment rights.” 911 F. 3d 104, 109 (CA2 2018). The Court of Appeals held that the answer was yes and affirmed on that basis. *Ibid.* We granted certiorari to review the Court of Appeals’ decision.

II

The road has been long, but we have arrived at the specific question now before us: whether enforcing the Policy Requirement against respondents’ clearly identified foreign affiliates violates respondents’ own First Amendment rights. Like the District Court and the Court of Appeals, I believe the answer is yes.

Our reasoning in *AOSI I*, along with the body of precedent on which it relied, should decide this case. Just as com-

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pellling a clearly identified *domestic* affiliate to espouse a government message distorts respondents’ own protected speech, *AOSI I*, 570 U. S., at 219, so too does compelling a clearly identified *foreign* affiliate to espouse the same government message. Either way, federal funding conditioned on that affirmative avowal of belief comes at an unconstitutionally high “price of evident hypocrisy.” *Ibid.*

Properly understood, our speech-misattribution cases—in particular *Hurley v. Irish-American Gay, Lesbian and Bisexual Group of Boston, Inc.*, 515 U. S. 557 (1995)—confirm that commonsense conclusion. Any other result would undermine First Amendment protections for the countless American speakers who address audiences overseas.

A

Respondents should prevail here for the same reasons they prevailed in *AOSI I*. When respondents speak through legally separate but clearly identified affiliates, we held, that speech is attributed to respondents for First Amendment purposes. *AOSI I*, 570 U. S., at 219. So when the Government demands as a condition of federal funding that their clearly identified affiliate “espouse a specific belief as its own,” respondents may express a contrary view through some other corporate channel only on pain of appearing hypocritical. *Ibid.* Leveraging Congress’ Article I spending power to distort respondents’ protected speech in this way therefore violates *respondents’* First Amendment rights—whatever else might be said about the affiliate’s own First Amendment rights (or asserted lack thereof). *Ibid.*

These principles apply with full force to the dispute now before us. Respondents and their affiliates receive federal funding to fight HIV/AIDS *overseas*. What has been at stake in this case from the beginning, then, is protected speech often aimed at audiences abroad. Our decision in *AOSI I* shielded respondents’ global message from government-compelled distortion in the eyes of those foreign

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audiences, as well as listeners here at home. *Ibid.* Yet in the wake of our ruling, respondents have continued to suffer that exact same First Amendment harm.

True, respondents' international mission sometimes requires that they convey their message through affiliates incorporated in far-off countries, rather than registered here at home. But so what? Audiences everywhere attribute speech based on whom they perceive to be speaking, not on corporate paperwork they will never see. What mattered in *AOSI I* was thus how "clearly identified" the affiliates were with respondents, not the fact that the affiliates were incorporated as separate legal entities. *Ibid.* And what matters now is once again how "clearly identified" the affiliates are with respondents, not the fact that the affiliates were incorporated as *foreign* legal entities.

The First Amendment question therefore hinges, as it did before, on what an objective observer sees, hears, and understands when respondents speak through their foreign affiliates. As to that, not even the Government meaningfully disputes that respondents and their foreign affiliates are clearly identified with one another. Their appearances are the same. Their goals are the same. Their values are the same. *Their message* is the same. Leveraging Congress' spending power to demand speech from respondents' foreign affiliates distorts that shared message—and violates respondents' First Amendment rights. So while respondents and their clearly identified foreign affiliates may be technically different entities with respect to such matters as contracts, taxes, and torts, they are constitutionally the same speaker when it comes to the protected speech at issue in this case.

This two-entities-one-speaker principle is an established part of our First Amendment jurisprudence. Take *Regan*. To refresh, in that case we upheld a ban on engaging in certain protected speech (lobbying) that the federal tax code imposed on a nonprofit's § 501(c)(3) organization because the